



Gilead - Ouro

MN-60014

Phase 1 Determination

Acquisition may be put into effect

18 May 2026

1. Determination and statement of reasons

Notified acquisition	Gilead Sciences, Inc. (Gilead)’s proposed acquisition, via its wholly owned subsidiary Ojas Merger Sub LLC, of all of the outstanding shares of Ouro Medicines, LLC (Ouro) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Gilead, is a biopharmaceutical company incorporated in the United States. Globally, Gilead’s activities focus on advancing medicines to prevent and treat life-threatening diseases, including HIV, liver disease, coronavirus disease 2019 (COVID-19), inflammation and cancer. Its primary subsidiary in Australia is Gilead Sciences Pty. Ltd., through which Gilead supplies Australian customers with a range of medicines. Gilead does not have any manufacturing or R&D facilities in Australia but runs clinical trials in Australia and employs an operations team in Australia to support those trials. The target, Ouro, is a privately-held, U.S.-based clinical-development stage biotechnology company focused on developing T cell engager (TCE) therapies for autoimmune diseases.
Overlap and relationship between the parties	Gilead and Ouro (together, the Parties) are both active in the development of T cell therapies for the treatment of autoimmune diseases. Gilead is engaged in Phase 1 clinical and preclinical research and development pipeline activities for CAR-T early-stage programs. Ouro is engaged in Phase 1b clinical development of TCE therapies. Given the early stage of development of the Parties’ T cell therapies for the treatment of autoimmune diseases, potential indications for treatment are not known at this stage, with the exception of idiopathic inflammatory myopathy, where there is some overlap in the Parties’ pipeline products.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC’s approach to considering notified acquisitions, see the ACCC’s merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the

	effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The potential competition between the Parties in the supply of T cell therapies is uncertain, given the early stages of the Parties' respective clinical trials and lack of identified overlapping potential indications. • There are other competitors active in the development of CAR-T and TCE therapies that will continue to compete with Gilead.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**